

Amendment No. 1 to HB2188

Farmer
Signature of Sponsor

AMEND Senate Bill No. 2362

House Bill No. 2188*

by deleting all language after the enacting clause and substituting:

SECTION 1. Tennessee Code Annotated, Title 37, Chapter 5, Part 1, is amended by adding the following as a new section:

(a)

(1) The department and the department of disability and aging (DDA) shall collaborate to ensure that children with an intellectual or developmental disability who are in the custody of the department of children's services or at risk of entering the custody of the department receive appropriate services and supports for individuals with a disability.

(2) As part of this collaboration:

(A) DDA may develop training for the department related to identification of and supports for a child with a disability;

(B) DDA may provide consultation to the department on the development of quality oversight tools for the monitoring of department contractors providing residential services to a child with a disability; and

(C) The department may refer children suspected to have an intellectual or developmental disability to DDA for service recommendations.

(3) The department and DDA may develop and enter into an interagency agreement to further this collaboration.

(b) The department shall submit a report outlining the department's compliance with subsection (a) by January 1, 2027, and annually thereafter to the chair of the senate judiciary committee, the chair of the senate health and welfare committee, the chairs of the joint government operations committee, the chair of the committee of the house of representatives having subject matter jurisdiction over civil matters, and the chair of the committee of the house of representatives having subject matter jurisdiction over health matters. The report must include:

- (1) The number of children referred by the department to DDA;
- (2) The number of children in the department's custody who were evaluated by DDA;
- (3) The status of the development of quality oversight tools for the monitoring of department contractors providing residential services to a child with a disability;
- (4) The status of any training pursuant to subdivision (a)(2)(A); and
- (5) The status of care coordination services pursuant to this section.

SECTION 2. This act takes effect upon becoming a law, the public welfare requiring it.